

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #05	CCRB Case #: 202103804	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/24/2021 11:54 AM, Thursday, 06/24/2021 12:03 PM, Tuesday, 07/26/2022 1:05 PM	Location of Incident: East 47th St. bet. Madison Ave and 5th Ave; West 47th St. bet. 5th Ave and 6th Ave; 100 Church St.	18 Mo. SOL 12/24/2022	Precinct: 18		
Date/Time CV Reported Thu, 06/24/2021 3:16 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 06/24/2021 3:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean McGill	07348	933001	MTN PCT
2. SGT Efrain Perez	00329	937268	C R C

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jaime Sitko	02038	939472	C R C
2. POM Ronald Perillo	21056	927346	MTN PCT
3. PO David Loftus	22237	950763	MTN PCT
4. PO Amaury Gomez	17019	952789	CRC
5. PO Edward Montoya	14418	935341	CRC
6. PO Hipolito Duran	27794	951091	CRC
7. PO Bekim Xhudo	21776	953583	CRC
8. PO Kevin Williams	20979	952345	CRC
9. PO Luis Delgado	22733	954715	CRC
10. PO Christopher Wright	19412	952356	CRC
11. PO Johnny Liu	29496	950759	CRC
12. PO Felix Guillermo	21022	949866	CRC
13. PO Michael Nazario	30152	928852	CRC
14. PO Ezequiel Nunez	10249	935410	CRC
15. PO Patrick Thomas	22039	946322	MTN PCT
16. PO Brian Moore	02415	935344	CRC

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Sean McGill	Discourtesy: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill spoke discourteously to § 87(2)(b)	A . Substantiated
B . POM Sean McGill	Abuse: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Sean McGill	Abuse: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill forcibly removed § 87(2)(b) to the hospital.	C . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
D . POM Sean McGill	Force: On June 24, 2021, at West 47th Street between 5th Avenue and 6th Avenue in Manhattan, Police Officer Sean McGill struck § 87(2)(b) with a vehicle.	D . Substantiated
E . SGT Efrain Perez	Discourtesy: On June 24, 2021, at West 47th Street between 5th Avenue and 6th Avenue in Manhattan, Sergeant Efrain Perez spoke discourteously to § 87(2)(b)	E . Substantiated
F . POM Sean McGill	Untruthful Stmt.: On July 26, 2022, at 100 Church Street in Manhattan, Police Officer Sean McGill provided a false official statement to the CCRB.	F . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 25, 2021, § 87(2)(b) filed this complaint via the CCRB's website and the CCRB's Call Processing System.

On June 24, 2021, at approximately 11:54 a.m., at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, § 87(2)(b) attempted to get assistance from PO Sean McGill of the 18th Precinct (aka Midtown North or MTN), after being side swiped by a truck while cycling. An argument ensued between § 87(2)(b) and PO McGill. PO McGill allegedly told § 87(2)(b) that he did not "give a fuck" about § 87(2)(b) recording their interaction, allegedly told him, "Get the fuck out of here," and told him, "You ain't gonna do shit" (**Allegation A: Discourtesy, substantiated**). PO McGill allegedly took out his pepper spray, began shaking it, and walked toward § 87(2)(b) (**Allegation B: Abuse of Authority, unsubstantiated**). § 87(2)(b) got onto his bicycle and left. PO McGill then got into a vehicle with PO Ronald Perillo and PO David Loftus of the 18th Precinct and pursued § 87(2)(b) down 47th Street with the intention of forcibly removing him to the hospital (**Allegation C: Abuse of Authority, substantiated**). At approximately 12:03 p.m., on West 47th Street between 5th Avenue and 6th Avenue, while inside a moving police vehicle, PO McGill opened his vehicle door into § 87(2)(b) as he cycled beside the vehicle (**Allegation D: Force, substantiated**). Officers then handcuffed § 87(2)(b). Several Critical Response Command (CRC) officers were in the vicinity and went over to assist. Sgt. Efrain Perez of CRC told § 87(2)(b) "You're looking for a fucking viral video," and, "This shit is in the fucking news every day, relax" (**Allegation E: Discourtesy, substantiated**). An ambulance arrived and § 87(2)(b) was involuntarily removed to a hospital. No arrests or summonses resulted from the incident.

On July 26, 2022, PO McGill provided a false official statement to the CCRB (**Allegation F: Untruthful statement, substantiated**). § 87(2)(g), § 87(4-b)

The investigation obtained cellphone footage from § 87(2)(b) (BR 01), BWC footage from the second incident (BR 02-13), a brief cellphone video from a passerby (BR 14), NYPD ARGUS CCTV footage (BR 15-24), and surveillance footage from private businesses at the following addresses: 575 5th Avenue (BR 25), 62 West 47th Street (BR 26-27), 64 West 47th Street (BR 28-29), and 50 West 47th Street (BR 30-31). All footage is summarized at (BR 47). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

PO Perillo has since been promoted to detective. PO Loftus has since retired from the NYPD.

Findings and Recommendations

Allegation (A) Discourtesy: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill spoke discourteously to § 87(2)(b).

§ 87(2)(b) testified (BR 32-33) that he tried to obtain PO McGill's assistance after a truck driver side swiped him while he was riding a CitiBike. PO McGill was alone in a parked NYPD vehicle, and he remained in his vehicle and did not respond to § 87(2)(b) requests for help. § 87(2)(b) took out his cellphone and began recording. PO McGill then exited and stated that he did not "give a fuck" about § 87(2)(b) recording and that he had a camera too. § 87(2)(b) and PO McGill began arguing. § 87(2)(b) may have cursed at PO McGill

in frustration and may have called him a “dickhead.” § 87(2)(b) then went to get his bicycle and went back over toward PO McGill. PO McGill pulled out his pepper spray and told § 87(2)(b) to leave. PO McGill may have said, “Get the fuck out of here,” but § 87(2)(b) was not sure. § 87(2)(b) did not recount that PO McGill told him, “You ain’t gonna do shit.”

The surveillance footage capturing this initial interaction does not have any audio, and PO McGill did not activate his BWC during this part of the interaction with § 87(2)(b). § 87(2)(b) cellphone video (BR 01) only captures part of the interaction. § 87(2)(b) curses at PO McGill and makes various comments to him, such as, “That’s all you got?” and, “I can be anywhere I want.” PO McGill remains inside his police vehicle. PO McGill initially does not respond to § 87(2)(b) and he then tells him to leave. They argue back and forth. At 00:55, PO McGill twice tells § 87(2)(b) “You ain’t gonna do shit.” The footage does not capture PO McGill using any other profanity.

PO McGill, who was interviewed approximately 13 months after the incident, testified (BR 34) that § 87(2)(b) had his phone out when he first approached. PO McGill did not recall telling § 87(2)(b) that he did not give a “fuck” about him recording. PO McGill likely told § 87(2)(b) to leave but did not recall telling § 87(2)(b) “Get the fuck out of here.” PO McGill did not recall telling § 87(2)(b) “You ain’t gonna do shit.” PO McGill did not recall using any profanity. After viewing his BWC footage, PO McGill acknowledged that he told § 87(2)(b) “You ain’t gonna do shit,” because § 87(2)(b) had been cursing at him.

The NYPD is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers must “maintain a higher standard of integrity than is generally expected of others.” Patrol Guide Procedure 200-02 (BR 35). The NYPD’s disciplinary decisions “have consistently held that when a police officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation, the police officer’s verbal slip does not rise to the level of actionable misconduct.” NYPD Disciplinary Case No. 76927/04 (2004) (BR 36).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
The footage makes clear that PO McGill did twice tell him, “You ain’t gonna do shit.” § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that PO McGill pulled out his pepper spray and began shaking it after § 87(2)(b) went to get his bicycle and reapproached PO McGill. He was approximately six feet away from § 87(2)(b). PO McGill held the pepper spray torso-level while he shook it and walked toward § 87(2)(b) but he did not extend his arm outward. PO McGill then told

§ 87(2)(b) to leave two or three times. § 87(2)(b) believed that PO McGill was ready to use the pepper spray against him, so he got onto his bicycle and left.

§ 87(2)(b) records from § 87(2)(b) (see Privileged Records) detailed that he reported to medical personnel that the police pulled out their pepper spray during the interaction.

As will be explained below, PO McGill made the decision that he would need to restrain § 87(2)(b) in order for him to be removed to a hospital by ambulance (see Allegation C). PO McGill testified that he had pepper spray with him, which was located toward the back of his belt, on the left-hand side. PO McGill reached his hand toward the location where his pepper spray was located. PO McGill did not recall whether he drew his pepper spray or whether he took out his pepper spray and began shaking it while walking toward § 87(2)(b). Procedurally, officers need to shake pepper spray to activate it. PO McGill reached for his pepper spray because he was going to have to physically restrain § 87(2)(b) who was being uncooperative, and he would not have willingly complied, so PO McGill would have needed to use force to remove him to the hospital. § 87(2)(b) left the scene on his bicycle when PO McGill walked forward to try to subdue him.

The surveillance footage from this portion of the incident shows § 87(2)(b) and PO McGill speaking and interacting but does not have sufficient clarity to show whether PO McGill ever reached for his pepper spray or drew his pepper spray. § 87(2)(b) cellphone video footage does not show PO McGill drawing his pepper spray or reaching toward the back of his belt. As previously noted, PO McGill had not yet activated his BWC at this point in his interaction with § 87(2)(b). In PO Perillo's later BWC footage (BR 02, at 35:13), § 87(2)(b) tells EMS personnel that PO McGill pulled out his pepper spray earlier in the interaction.

While video footage does not depict PO McGill drawing his pepper spray, the footage also does not provide a comprehensive account of this portion of the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: On June 24, 2021, at East 47th Street between Madison Avenue and 5th Avenue in Manhattan, Police Officer Sean McGill forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified that a truck driver side swiped him while he was riding his CitiBike on Park Avenue. § 87(2)(b) followed the truck on his bicycle to get him to stop. The truck driver ultimately stopped at a red light at East 47th Street and 5th Avenue, at which point § 87(2)(b) moved his bicycle in front of the truck to prevent him from driving away. § 87(2)(b) noticed PO McGill stationed nearby in a marked vehicle. § 87(2)(b) began waving to get PO McGill's attention and to ask for his assistance. PO McGill remained in his vehicle and did not respond. § 87(2)(b) approached PO McGill's vehicle and told him that he was hit by the truck. PO McGill asked § 87(2)(b) if he was hurt or if needed medical attention, which he declined. At some point, § 87(2)(b) and PO McGill began arguing. PO McGill raised his voice, so § 87(2)(b) raised his voice in return. § 87(2)(b) questioned PO McGill and asked why he did not exit from his vehicle to assist him. § 87(2)(b) may have cursed at PO McGill in frustration and may have called him a "dickhead." § 87(2)(b) then went to get his bicycle and went back over toward PO McGill. PO McGill pulled out his pepper spray and told § 87(2)(b) to leave, which he did. § 87(2)(b) proceeded to cycle west on West 47th Street. As § 87(2)(b) was biking, PO McGill opened

the rear driver's side door of a police vehicle into § 87(2)(b) right wrist and the bicycle. The officers handcuffed § 87(2)(b) and PO McGill informed him that they called an ambulance. § 87(2)(b) was brought to § 87(2)(b) for a psychiatric evaluation, and he was released § 87(2)(a) – PHL 18(6)

§ 87(2)(b) records from § 87(2)(b) § 87(2)(a) – PHL 18(6)

The surveillance footage from this part of the incident does not have audio and is not very clear due to the camera positioning. In sum, the surveillance footage (BR 24, at 23:38) shows PO McGill and § 87(2)(b) speaking and interacting for approximately eight minutes, in which time PO McGill repeatedly exits his vehicle, goes back into his vehicle, and exits again. As described above, in § 87(2)(b) cellphone video (BR 01), § 87(2)(b) argues with PO McGill, curses at him, and periodically raises his voice. § 87(2)(b) makes various comments such as, "That's all you got?" and "I can be anywhere I want." PO McGill initially remains inside his vehicle and then tells § 87(2)(b) to leave. After going back and forth for a few minutes, PO McGill exits his vehicle and walks toward § 87(2)(b) at which point § 87(2)(b) cycles away.

Footage from 50 West 47th Street (BR 31, at 32:53) shows § 87(2)(b) biking once he is already partway down West 47th Street. He is not speeding and is initially biking on the south side of the street, then moves over to the north side of the street when a truck blocks the roadway. There is a great deal of vehicular, pedestrian, and cycling traffic. § 87(2)(b) briefly continues biking on the north side of the street, and then crosses back over to the south side of the street. He does not appear to be biking erratically, and he appears to be moving at a very slow speed.

PO McGill testified that § 87(2)(b) was acting erratically when he first saw him, insofar as he was jumping up and down and waving his arms. PO McGill could not hear whether § 87(2)(b) said anything, and PO McGill did not know what he was doing. A truck driver approached PO McGill and told him that § 87(2)(b) had been following him on his bicycle for three blocks. § 87(2)(b) then approached PO McGill, leaving his CitiBike resting on its kickstand in the crosswalk at 47th Street and 5th Avenue. § 87(2)(b) said that the truck driver had been trying to kill him. The truck driver said that he did not hit § 87(2)(b). PO McGill asked if § 87(2)(b) was injured or needed an ambulance, which he declined. PO McGill did not observe any physical injuries on § 87(2)(b). He tried to get § 87(2)(b) side of the story, but § 87(2)(b) continued to ramble erratically, so PO McGill could not get a clear explanation about what happened. § 87(2)(b) was yelling and cursing at PO McGill, making statements such as, "Fuck you," and, "You're a piece of shit." § 87(2)(b) was highly agitated throughout the incident. PO McGill told § 87(2)(b) that it sounded like the incident was a dispute, so he could not do much other than obtain medical attention for § 87(2)(b) if he so desired.

PO McGill recounted that § 87(2)(b) then got more agitated and aggressive. § 87(2)(b) threatened PO McGill, stating, in sum and substance, that he would "have" PO McGill's job and that he would get PO McGill back. PO McGill likely told § 87(2)(b) to leave during the interaction. PO McGill then went back into his vehicle because § 87(2)(b) started to walk away. § 87(2)(b) began walking back to PO McGill's vehicle, so PO McGill decided that § 87(2)(b) needed to be removed to the hospital and he exited his vehicle. As

PO McGill walked toward § 87(2)(b) he left on his bicycle. PO McGill then got into PO Perillo and PO Loftus' nearby vehicle to pursue § 87(2)(b)

The following factors indicated to PO McGill that § 87(2)(b) was emotionally disturbed: he kept repeating that people were trying to kill him, he was screaming and yelling, he left his bicycle in the middle of the street blocking traffic, and he was pacing back and forth. PO McGill made the decision that he needed to be removed to the hospital a few minutes after the initial confrontation began, based on the totality of the circumstances. PO McGill was worried that § 87(2)(b) was going to endanger himself or somebody else because of his erratic behavior and because he did not seem to be "of sound mind." PO McGill had not interacted with § 87(2)(b) prior to the incident. He had no knowledge of § 87(2)(b) having any prior history of being emotionally disturbed or of engaging in criminality.

Once PO McGill was in the backseat of the police vehicle, he saw that § 87(2)(b) was biking erratically down 47th Street, insofar as he was speeding and weaving in and out of traffic, crossing over from one side of the street to the other. At that point, PO McGill considered § 87(2)(b) to be a danger to others. PO McGill's sole intention was to remove § 87(2)(b) to the hospital. Once the vehicle caught up to § 87(2)(b) PO McGill quickly exited to grab § 87(2)(b) PO McGill and PO Loftus handcuffed § 87(2)(b) and PO McGill then went over the radio and requested an ambulance. As they waited for the ambulance, § 87(2)(b) acted even more erratically than during their earlier interaction. To PO McGill's knowledge, a responding paramedic eventually determined that § 87(2)(b) needed to go to the hospital, given that § 87(2)(b) was "clearly" emotionally disturbed and that the paramedic almost needed to sedate § 87(2)(b). At one point, § 87(2)(b) threatened to kill one of the paramedics.

An AIDED Report (BR 37) prepared by PO McGill detailed that § 87(2)(b) physically and verbally threatened others. The narrative detailed that § 87(2)(b) rode his bicycle "erratically in and out of traffic, threatening motorists and pedestrians," and that he "yell[ed] in the middle of the street claiming people were trying to kill him." After viewing the report, PO McGill testified that § 87(2)(b) physically threatened others when he biked erratically. § 87(2)(b) verbally threatened others when he threatened PO McGill and when he threatened to kill the paramedic.

The available evidence does not support PO McGill's claim that § 87(2)(b) was biking erratically. Although the footage does not depict the entire timeframe when § 87(2)(b) was biking on West 47th Street before PO McGill apprehended him, the footage clearly shows that he was not speeding and that he solely moved to one side of the street, before crossing back over to the other, in order to avoid a vehicle that was blocking his way.

The investigation pled this allegation against PO McGill because he was the officer who determined that § 87(2)(b) was an emotionally disturbed person who needed to be forcibly removed to the hospital, and because he got into PO Perillo and PO Loftus' vehicle in order to pursue § 87(2)(b) and remove him to the hospital. Though a supervisor, Sgt. Perez, subsequently arrived on scene, he was not present at the point that PO McGill decided he was going to apprehend § 87(2)(b) and have him forcibly removed.

Officers must take into protective custody and remove to the hospital individuals who appear to be mentally ill or temporarily deranged **and** are conducting themselves in a manner that an officer reasonably believes is likely to result in serious injury to themselves or others. Patrol Guide Procedure 221-13 (BR 38).

Although the testimonies and video footage showed that § 87(2)(b) raised his voice and cursed at PO McGill, § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation (D) Force: On June 24, 2021, at West 47th Street between 5th Avenue and 6th Avenue in Manhattan, Police Officer Sean McGill struck § 87(2)(b) with a vehicle.

§ 87(2)(b) testified that he biked west on West 47th Street with vehicular traffic on his right side. He was biking slowly on his pedal-assisted CitiBike, at what he thought was approximately five miles per hour. While he was biking, § 87(2)(b) saw a vehicle in his peripheral vision and then heard a vehicle, which he later saw was a police vehicle, lightly rev its engine and move forward to catch up to him. The vehicle was moving slowly, at approximately the same speed as § 87(2)(b). At that point, the vehicle was parallel with § 87(2)(b) and angled slightly toward the north side of West 47th Street. While the police vehicle was moving, PO McGill opened the rear driver's side door of the vehicle into § 87(2)(b). PO McGill moved the door into § 87(2)(b) with a great deal of force, hitting his right wrist and the bicycle pedal. Officers had not said anything to prior to that point. The CitiBike fell over to the left and § 87(2)(b) fell forward off the bicycle, onto the ground. He shifted his weight, to prevent himself from landing on his face, and landed on his knees. § 87(2)(b) believed that PO McGill deliberately struck him with the door. § 87(2)(b) sustained the following injuries: bruising, redness, and swelling to both knees; stiffness in his lower back; abrasions, bruising, and swelling to his right lower arm; and abrasions on both wrists from the handcuffs. After being released from § 87(2)(b), § 87(2)(b) went to § 87(2)(b) Hospital on his own. They took X-rays of his arms, hands, and knee, and nothing was fractured. § 87(2)(a) – PHL 18(6)

§ 87(2)(b) records from § 87(2)(b) § 87(2)(a) – PHL 18(6) noted that he had a superficial abrasion to his right knee. His records from § 87(2)(b) Hospital detailed that § 87(2)(b) reported abrasions to both wrists and both hands, back pain, knee pain, and abrasions to his knees. He also reported that a police officer had purposely opened his car door to hit him as he was riding his bicycle. § 87(2)(a) – PHL 18(6)

§ 87(2)(b), § 87(2)(a) – PHL 18(6), § 87(2)(c) § 87(2)(b) provided photographs depicting scrapes on both of his legs, below his knee (BR 39-40).

Neither PO Perillo's nor PO Loftus' BWC footage captured the use of force, as both officers were in the front seat. PO McGill did not activate his BWC until § 87(2)(b) had already been handcuffed. PO Perillo's BWC footage (BR 02) shows PO McGill riding in PO Perillo and PO Loftus' vehicle as they pursue § 87(2)(b) on West 47th Street. At 01:01, PO Perillo asks PO McGill if the civilian is a delivery guy and PO McGill responds, "No, he's an EDP (emotionally disturbed person). I'm grabbing this guy and fucking throwing him down."

Surveillance footage from 64 West 47th Street (BR 29, at 00:11) shows the marked police SUV driving west on West 47th Street. The police vehicle's lights are activated. There is one lane of traffic and there are parked cars on both sides of the street. The area is very busy with vehicular and pedestrian traffic, including pedestrians who are crossing in the middle of the street. There is no bicycle lane. § 87(2)(b) is biking to the left of the police vehicle, in the same direction that traffic is moving. § 87(2)(b) bikes in between the police vehicle and the row of parked cars. Both the police SUV and § 87(2)(b) are moving at a slow rate of speed. At 00:13, § 87(2)(b) bicycle is next to the police vehicle, near the rear driver's side door. It appears that he is approximately one to two feet away from the vehicle. At 00:15, the police vehicle slows down and the rear driver's side door opens while the vehicle is still in motion. It appears that the door hits into § 87(2)(b) or his bicycle, given that § 87(2)(b) bicycle and body begin tipping over away from the police vehicle as soon as the door is opened. Based on the angle, it is not visible where exactly the door makes contact. The bicycle falls onto the ground. § 87(2)(b) is jarred from the impact, quickly dismounts, and remains upright. He does not fall to the ground. PO McGill exits from the rear driver's side of the vehicle and approaches § 87(2)(b). An alternate angle is visible in ARGUS video footage (BR 20, at 33:28).

In PO Perillo's BWC footage (BR 02, at 01:19), § 87(2)(b) CitiBike is visible in the street, lying on its side. PO McGill, PO Loftus, and PO Perillo handcuff § 87(2)(b). § 87(2)(b) repeatedly says, "You just hit me with the door." At 01:55, § 87(2)(b) moves or falls onto the ground on his knees. This is the only point in all the available video footage when § 87(2)(b) is on his knees on the ground. In PO Gomez's BWC footage (BR 06, at 16:31), § 87(2)(b) asks PO McGill why he hit him with the door. PO McGill replies, "I didn't hit you, you ran into it."

PO McGill testified that he got into the backseat and sat behind the driver while pursuing § 87(2)(b). At the time, West 47th Street was very busy, with heavy foot traffic, busy vehicle traffic, cyclists, pedestrians walking in the middle of the street, and people working on the block. Once PO McGill was inside the vehicle, he saw that § 87(2)(b) was biking erratically. § 87(2)(b) sped down the street and weaved in and out of traffic. § 87(2)(b) did not stop to let pedestrians cross the street and he "barely missed" hitting them. At that point, PO McGill considered § 87(2)(b) to be a danger to others.

PO McGill could not estimate how fast the police vehicle was driving, but it was not very fast. PO McGill could see § 87(2)(b) as he biked down the block, though his view was somewhat obstructed because the vehicle had a backseat partition. PO McGill could not estimate how fast § 87(2)(b) was biking. PO McGill pointed out § 87(2)(b) to the officer who was driving. Initially, § 87(2)(b) was approximately 30 feet ahead of the officers' vehicle. PO McGill was able to see § 87(2)(b) "more or less" the entire time. § 87(2)(b) was biking on the south side of the street, to PO McGill's left.

The police vehicle caught up to § 87(2)(b) once traffic became so tight that he slowed down. Once they got closer to § 87(2)(b) the officers all understood that PO McGill was going to have to jump out and grab him, though he did not recall if there was any specific conversation about it. When PO McGill went to open the door, he saw that § 87(2)(b) was still in front of the police vehicle, approximately a few feet away. His bicycle may have been beside the front driver's side quarter panel or by the driver's side door, but PO McGill did not recall. PO McGill believed that the police vehicle was stopped when he exited. PO McGill quickly exited the vehicle to grab § 87(2)(b) as soon as he was close enough to do so. PO McGill initially stated that he "did not think" that his door made any contact with § 87(2)(b) bicycle, and he then stated that he did not recall whether his door hit into § 87(2)(b) or his bicycle. When PO McGill exited, § 87(2)(b) was standing upright and the bicycle was on the ground, because § 87(2)(b) dropped the bicycle as soon as PO McGill exited. PO McGill did not open his door with a great deal of force.

PO McGill and PO Loftus walked toward § 87(2)(b) turned him around, and handcuffed him. § 87(2)(b) resisted by flailing his arms and refusing to put his arms behind his back, but the officers were able to handcuff him. PO McGill did not observe any injuries on § 87(2)(b). He did not recall seeing whether the CitiBike sustained any damage. There was no damage sustained to the door of the police vehicle.

Upon viewing PO Perillo's BWC footage, PO McGill stated that he did not hear himself say, "No, he's an EDP, I'm grabbing this guy and fucking throwing him down." PO McGill solely heard himself say that he was going to grab him. After watching CCTV footage from 64 West 47th Street, PO McGill stated that he did not see the police vehicle door make any contact with § 87(2)(b) in the footage. PO McGill maintained that the footage showed what he had testified to earlier, namely that § 87(2)(b) got off his bicycle when PO McGill exited the vehicle. PO McGill viewed the footage twice more, including in a frame-by-frame review. PO McGill maintained that he did not see the door make any contact with § 87(2)(b) or his bicycle. PO McGill explained, "I opened the door, I jumped out, he jumped off the bike, that's what it looks like to me. I don't, I didn't hit him with – from what I remember, I don't hit him with the car door." He further testified that the video showed him jumping out of the vehicle to restrain § 87(2)(b) and that § 87(2)(b) dropped the bicycle on his own accord once he saw the police officers because he knew that they were going to apprehend him. PO McGill also watched the alternate ARGUS footage view, after which he maintained that he did not want to change his testimony as it showed what he had previously testified.

Upon viewing PO Gomez's BWC footage, PO McGill confirmed that the video depicted § 87(2)(b) asking, "Why did you hit me with the door?" with PO McGill responding, "I didn't hit you, you ran into it." PO McGill denied hitting § 87(2)(b) with the door – stating, "I didn't intentionally do it, and I didn't hit him with the door, to my knowledge I did not hit with the door, he jumped off the bike, that's what it appeared to me." PO McGill told § 87(2)(b) "You ran into it," because it was just a reaction to what § 87(2)(b) said and they were just going back and forth.

The investigation did not identify any police records documenting any type of collision between the police vehicle and § 87(2)(b) or his bicycle.

The investigation determined, by a preponderance of the evidence, that PO McGill opened his vehicle door into § 87(2)(b) as the vehicle and the bicycle were still moving slowly beside each other. It is apparent that PO McGill believed he needed to use force in order to apprehend § 87(2)(b). He reached for his pepper spray earlier in the incident, and then he told the other

twice while speaking to § 87(2)(b) which he did not direct at § 87(2)(b) in a disparaging manner. While § 87(2)(b) was screaming very loudly, Sgt. Perez told him, “You’re just trying to make a fucking viral video. Stop.” Sgt. Perez meant that § 87(2)(b) was screaming so loudly to get someone’s attention, just to create a video, and he did not think it was necessary. Sgt. Perez made the statement out of frustration and because of “lack of articulation” – insofar as he could have found a better way to articulate himself at the moment. Sgt. Perez told § 87(2)(b) “This shit is in the fucking news every day,” because he was trying to build rapport with § 87(2)(b) by using the type of language that § 87(2)(b) was using. Sgt. Perez was trying to refocus § 87(2)(b) attention onto him to try to calm § 87(2)(b) down from screaming. Sgt. Perez also made the statement out of frustration.

The NYPD is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers must “maintain a higher standard of integrity than is generally expected of others.” Patrol Guide Procedure 200-02 (BR 35).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Allegation (F) Untruthful Statement: On July 26, 2022, at 100 Church Street in Manhattan, Police Officer Sean McGill provided a false official statement to the CCRB.

As described above, PO McGill did not acknowledge that the police vehicle door made any contact with § 87(2)(b) or his bicycle. PO McGill provided the following testimony, which is found at 44:00 in his interview recording:

SI Strauss: Did your – the door of the RMP made any physical contact with § 87(2)(b) bicycle?

PO McGill: I don’t think so, I don’t think so.

SI Strauss: Okay, got it.

PO McGill: He was, he was, from what I remember, I got out and he was standing up and I grabbed him and cuffed him.

SI Strauss: Okay, and did anything happen—once you got out, what happens with the bicycle?

PO McGill: What do you mean?

SI Strauss: Like does he stay on it, is he holding it –

PO McGill: No, no, the bike is down and he’s standing up from what I remember. And then I cuffed him.

SI Strauss: Okay and how does the bike end up down?

PO McGill: He dropped it, he dropped it as soon as we got out of the car. I don’t know if he turned around and saw us or what. I don’t know.

SI Strauss: Okay got it. And so, him dropping the bike, to your knowledge, was that—

PO McGill: That’s to my knowledge. He’s saying that he got hit with the car. I wasn’t driving the car, so he’s saying he got hit with a car, I don’t know. But when I got out, he was standing, from what I remember, the bike was on the ground and he was standing up.

SI Strauss: Okay, got it. Um alright. And so, it was alleged that as you exited the vehicle, your door hit into § 87(2)(b) bike.

PO McGill: Okay.

SI Strauss: So again, just for the record, did that happen?

PO McGill: I don’t recall if that happened.

SI Muir: And specifically, not just hitting his bike, hitting him.

SI Strauss: Hitting both him and the bike simultaneously.

PO McGill: I don't recall that.

After watching surveillance footage from 64 West 47th Street, which depicted the moment that PO McGill opened his police vehicle door as § 87(2)(b) was biking, PO McGill provided the following testimony, which is found at 01:25:00 in his interview recording:

SI Strauss: So, after seeing this, Officer, does it refresh your recollection about anything you didn't previously testify to?

PO McGill: No.

SI Strauss: Okay, um, do you see in the moment – sorry, in the video – that there is a moment where it appears that your car door makes contact with § 87(2)(b)

PO McGill: I don't—I mean—

SI Strauss: No, you didn't see that in the video?

PO McGill: I didn't, not that I can see in the video. He gets off, it's what I said, he's standing up off the bike as I got out of the car.

PBA Counsel Cindy Mangano: I would like the record to reflect also that it is clear that the complainant is standing. It appeared that he moved actually quickly away from the officer. It does appear that the bike is up.

PO McGill then watched the same portion of the video footage again.

SI Strauss: So again, after seeing that, do you see in this video that it appears that the door makes some kind of contact with § 87(2)(b) or the bike?

PO McGill: No, I can't see from this. I mean, I opened the door, I jumped out, he jumped off the bike, that's what it looks like to me. I don't—I didn't hit him—from what I remember, I don't hit him with the car door. If I would've hit him with the car door, I'm sure he would've fallen down and sustained a severe injury.

SI Strauss: Okay um, so I'm just going to go back one more time.

PO McGill: Like I said, there's pedestrians in the street, I, like I said, it is a tight area. I get out of the car, the bike's on the ground already. And I, uh apprehended him.

PO McGill then watched the same portion of the video footage again, in a frame-by-frame review.

SI Strauss: Okay, so just one last time, I want to be clear. To you, this video does not show any kind of—

PO McGill: No, it doesn't change what I said, my statement.

SI Strauss: Okay and so, what is happening here that you're seeing?

PO McGill: What happened is that I jumped out of the car to restrain him.

PBA Counsel Cindy Mangano: Did he drop the bike?

PO McGill: He dropped the bike, yeah, he dropped the bike.

SI Strauss: And him dropping the bike, again, just confirming, you're maintaining your testimony that he dropped the bike on his own accord?

PO McGill: Yeah. He saw us, that we were right next to him. He saw that we were next to him.

SI Muir: Understood. Just, based on this video, does it appear that your car door hit the bike?

PO McGill: To me, no. I didn't hit him with the bike [*sic*]. You see how close we are, on the bike. You see how close.

- § 87(2)(b)
- PO McGill has been a member of the NYPD for 19 years and has been a subject in two complaints and three allegations, none of which were substantiated.
 - In 202200760, PO McGill allegedly drove his RMP scooter into an empty pedicab, pushing it onto the curb. PO McGill then allegedly reversed his scooter and again struck the pedicab. The case was closed as complainant uncooperative.
- Sgt. Perez has been a member of the NYPD for 17 years and has been a subject in three complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case could not be referred for mediation due to the Covid-19 pandemic.
- As of February 3, 2022, the NYC Comptroller's Office has no record of a Notice of Claim being filed regarding this complaint (BR 45).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator:	<u>Laura Strauss</u> Signature	<u>SI Laura Strauss</u> Print Title & Name	<u>October 19, 2022</u> Date
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Squad Leader:	<u>Daniel Giansante</u> Signature	<u>IM Daniel Giansante</u> Print Title & Name	<u>October 19, 2022</u> Date
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Reviewer:	 Signature	 Print Title & Name	 Date
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